

25TRCV03904 25TRCV03904

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-15

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Case Number: 25TRCV03904 Hearing Date: July 15, 2026 Dept: B

Hearing

Date: July 15,

2026

Moving Parties: Defendant Lisa Henschel

Responding Party: Plaintiff Ruth Ahn

Motion

to Set Aside Entry of Default and Default Judgment

The Court considered the moving papers and plaintiff's non-opposition.

RULING

The

motion is GRANTED. The default entered on March 26, 2026 is set aside and vacated.

BACKGROUND

On

November 14, 2025, plaintiff Ruth Ahn filed a complaint against Lisa Henschel, as administrator of the Estate of Bradford E. Henschel, Sr.

On March 26, 2026, a default was entered against defendant.

On April 2, 2026, defendant filed a motion to dismiss.

On April 27, 2026, at the hearing on defendant's motion to dismiss, the Court noted that a default had been entered against defendant and thus the motion was off calendar.

LEGAL AUTHORITY

CCP

§473(b) states, in relevant part: "The court may, upon any terms as may be just, relieve a party or the party's legal representative from judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . ."

"[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." *Fasuyi v.*

Permatex, Inc. (2008) 167 Cal. App. 4th 681, 697 (citations and internal quotations omitted).

DISCUSSION

Under

CCP §473(b), defendant requests that the Court vacate the default entered against her on March 26, 2026.

Defendant's

counsel states in their declaration that they met and conferred with plaintiff's counsel, who initially agreed on holding off on seeking entry of default in exchange for an agreement to mediate the case. Onica Valle Cole decl. Counsel states that defendant had a strong position with respect to a motion to dismiss and that counsel's office attempted to file it three times. The first two attempts were rejected by the clerk's office. Counsel states that on the date of the hearing, both parties were "surprised" by the Court's statement that defendant was in default. Defense counsel states that the default was the result of counsel's error in failing to reserve the motion and attach the reservation sheet to the motion as directed by the court's reservation system.

In

response, plaintiff filed a notice of non-opposition to the motion.

The

Court finds that the entry of default was the result of defense counsel's mistake, surprise, inadvertence, and/or neglect. Relief is mandatory. Plaintiff does not oppose.

The

motion is GRANTED.

ORDER

The motion is GRANTED.

The default entered on March 26, 2026 is set aside and vacated. Defendant is ordered to file a responsive pleading within 20 days.

Defendant

is ordered to give notice of ruling.